

24STCV07324 24STCV07324

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-07-31

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Case Number: 24STCV07324 Hearing Date: July 31, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

31, 2026 TRIAL DATE: March 1, 2027

CASE: HFC Acceptance, LLC v. Zeeba Company, Inc., et al.

CASE NO.: 24STCV07324

PLAINTIFF'S

MOTIONS TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES, REQUEST FOR PRODUCTION OF DOCUMENTS, AND REQUESTS FOR ADMISSION FROM DEFENDANTS KAMBIZ MARASHI, KAYVON MARASHI, AND SAEID MARASHI

I. INTRODUCTION

On March 13, 2026, Plaintiff, HFC Acceptance, LLC, filed nine motions to compel further responses to Plaintiff's first set of Form Interrogatories, Requests for Production of Documents, and Requests for Admission, from Defendants, Kambiz Marashi, Kayvon Marashi, and Saeid Marashi. Plaintiff requests sanctions against Defendants.

On July 20, 2026,
Defendants filed three omnibus oppositions.

On July 24,

2026, Plaintiff filed an omnibus reply.

II. LEGAL STANDARD

Under Code of Civil Procedure sections 2030.300, 2031.310, and 2033.290, parties may move for a further response to interrogatories, requests for production of documents, and requests for admissions where an answer to the discovery requests are evasive or incomplete or where an objection is without merit or too general. 222

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Notice of the motions must be given within 45 days of service of the verified response, otherwise, the propounding party waives any right to compel a further response. 2 (Code Civ. Proc., §§ 2030.300(c); 2031.310(c); 2033.290(c).) 222

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Finally, California Rules of Court, rule 3.1345(a)(3) requires that all motions or responses involving further discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses. 2

Monetary Sanctions 222

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Code of Civil Procedure section 2023.030 is a general statute authorizing the Court to impose discovery sanctions for “misuse of the discovery process,” which includes (without limitation) a variety of conduct such as: making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to discovery; and unsuccessfully and without substantial justification making or opposing a motion to compel or limit discovery. 2 (Code Civ. Proc., § 2023.010.) 222

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If sanctions are sought, Code of Civil Procedure section 2023.040 requires that the notice specify the identity of the person against

whom sanctions are sought and the type of sanction requested, that the motion be supported in the points and authorities, and the facts be set forth in a declaration supporting the amount of any monetary sanction.)))))

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Sanctions shall be awarded against any party, person or attorney who unsuccessfully makes or opposes a motion to compel further responses, unless the Court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (Code Civ. Proc., §§ 2030.300(d); 2031.310(h); 2033.290(d).))

III. DISCUSSION

Plaintiff seeks further responses to its first set of Form Interrogatories, Requests for Production of Documents, and Requests for Admission, from Defendants. The motions are meritorious. Plaintiff properly served the discovery requests. Defendants served meritless, objection-only responses. Further, contrary to Defendants' position, the service of supplemental responses during the pendency of a motion to compel further does not moot the motion. (See *County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243, 256 ["Moreover, to adopt the County's interpretation of the discovery act—that a party opposing a motion to compel further responses may unilaterally divest the court of authority to rule on the motion by serving a further response in the interim—would permit a party faced with a motion to compel to delay its adjudication indefinitely by successive supplemental but inadequate responses, each prompting a further motion to compel, each of which in turn would be defeated by piecemeal supplementation."].) The court will grant the motions.

Monetary Sanctions

Given the court's ruling, and Defendants' assertion of meritless objections to relevant discovery requests, the court finds sanctions are warranted. Accordingly, the court will grant Plaintiff's request for sanctions in full.

IV. CONCLUSION

The motions are GRANTED. Defendants are ordered to serve further verified responses without objection to the at-issue discovery requests within 30 days of this order.

Plaintiff's requests for sanctions are GRANTED. Each defendant is ordered to pay sanctions in the sum of \$1,500, for a total award of \$4,500 within 30 days of this order.

Plaintiff is ordered to give notice, unless waived.

Dated: July 31, 2026

Brock T. Hammond

Judge of the Superior Court